

Section 2 in The Payment Of Wages Act, 1936

2. Definitions .-In this Act, unless there is anything repugnant in the subject or context,-

(i)["appropriate Government" means, in relation to railways, air transport services, mines and oilfields, the Central Government and, in relation to all other cases, the State Government;][(i-a)] [Clauses (i), (i-a) and (i-b) renumbered as Clauses (i-a), (i-b) and (i-c) by Act 41 of 2005, Section 4 (w.e.f. 9.11.2005).] "employed person" includes the legal representative of a deceased employed person;[(i-b)] [Clauses (i), (i-a) and (i-b) renumbered as Clauses (i-a), (i-b) and (i-c) by Act 41 of 2005, Section 4 (w.e.f. 9.11.2005).] "employer" includes the legal representative of a deceased employer;[(i-c)] [Clauses (i), (i-a) and (i-b) renumbered as Clauses (i-a), (i-b) and (i-c) by Act 41 of 2005, Section 4 (w.e.f. 9.11.2005).] "factory" means a factory as defined in clause (m) of section 2 of the Factories Act, 1948 (63 of 1948) and includes any place to which the provisions of that Act have been applied under sub-section (1) of section 85 thereof;(ii)["industrial or other establishment" means] [Substituted by Act 38 of 1982, Section 4, for " industrial establishment' means" (w.e.f. 15.10.1982).] any-(a)[tramway service, or motor transport service engaged in carrying passengers or goods or both by road, for hire or reward; [Substituted by Act 53 of 1964, Section 3, for sub-Clause (a) (w.e.f. 1.2.1965).](aa)air transport service other than such service belonging to, or exclusively employed in the military, naval or air forces of the Union or the Civil Aviation Department of the Government of India;(b)dock, wharf or jetty;(c)[inland vessel, mechanically propelled;] [Substituted by Act 68 of 1957, Section 3, for sub-Clause (c) (w.e.f. 1.4.1958).](d)mine, quarry or oilfield;(e)plantation;(f)workshop or other establishment in which articles are produced, adapted or manufactured, with a view to their use, transport or sale;(g)[establishment in which any work relating to the construction, development or maintenance of buildings, roads, bridges or canals, or relating to operations connected with navigation, irrigation or the supply of water, or relating to the generation, transmission and distribution of electricity or any other form of power is being carried on;] [Inserted by Act 68 of 1957, Section 3 (w.e.f. 1.4.1958).](h)[any other establishment or class of establishments which] [Inserted by Act 38 of 1982, Section 4 (w.e.f. 15.10.1982).][the appropriate Government] [Substituted by Act 41 of 2005, Section 3, for " the Central Government or a State Government" (w.e.f. 9.11.2005).][may, having regard to the nature thereof, the need for protection of persons employed therein and other relevant circumstances, specify, by notification in the Official Gazette;] [Inserted by Act 38 of 1982, Section 4 (w.e.f. 15.10.1982).][(ii-a) "mine" has the meaning assigned to it in clause (j) of sub-section (1) of section 2 of the Mines Act, 1952 (35 of 1952);] [Inserted by Act 53 of 1964, Section 3 (w.e.f. 1.2.1965).](iii)["plantation" has the meaning assigned to it in clause (f) of section 2 of the Plantations Labour Act, 1951 (69 of 1951);] [Substituted by Act 53 of 1964, Section 3, for Clause (iii) (w.e.f. 1.2.1965).](iv)"prescribed" means prescribed by rules made under this Act;(v)["railway administration" has the meaning assigned to it in clause (32) of section 2 of the Railways Act, 1989 (24 of 1989);] [Substituted by Act 41 of 2005, Section 4, for Clause (v) (w.e.f. 9.11.2005).](vi)["wages" means all remuneration (whether by way of salary, allowances, or otherwise) expressed in terms of money or capable of being so expressed which would, if the terms of employment, express or implied, were fulfilled, be payable to a person employed in respect of his employment or of work done in such employment, and includes-(a)any remuneration payable under

any award or settlement between the parties or order of a Court;(b)any remuneration to which the person employed is entitled in respect of overtime work or holidays or any leave period;(c)any additional remuneration payable under the terms of employment (whether called a bonus or by any other name);(d)any sum which by reason of the termination of employment of the person employed is payable under any law, contract or instrument which provides for the payment of such sum, whether with or without deductions, but does not provide for the time within which the payment is to be made;(e)any sum to which the person employed is entitled under any scheme framed under any law for the time being in force, but does not include-(1)any bonus (whether under a scheme of profit-sharing or otherwise) which does not form part of the remuneration payable under the terms of employment or which is not payable under any award or settlement between the parties or order of a Court;(2)the value of any house-accommodation, or of the supply of light, water, medical attendance or other amenity or of any service excluded from the computation of wages by a general or special order of] [Substituted by Act 68 of 1957, Section 3, for Clause (vi) (w.e.f. 1.4.1958).] [the appropriate Government] [Substituted by Act 41 of 2005, Section 3, for " the State Government" (w.e.f. 9.11.2005).];(3)[any contribution paid by the employer to any pension or provident fund, and the interest which may have accrued thereon;(4)any travelling allowance or the value of any travelling concession;(5)any sum paid to the employed person to defray special expenses entailed on him by the nature of his employment; or(6)any gratuity payable on the termination of employment in cases other than those specified in sub-clause (d).] [Substituted by Act 68 of 1957, Section 3, for Clause (vi) (w.e.f. 1.4.1958).]